

Whangarei District Council Meeting Minutes

Date: Thursday, 12 December, 2024
Time: 9:00 a.m.
Location: Civic Centre, Te Iwitahi, 9 Rust Avenue

In Attendance

His Worship the Mayor Vince Cocurullo
Cr Gavin Benney
Cr Nicholas Connop
Cr Ken Couper
Cr Jayne Golightly
Cr Phil Halse
Cr Deborah Harding
Cr Patrick Holmes
Cr Scott McKenzie
Cr Marie Olsen
Cr Carol Peters
Cr Simon Reid

Not in Attendance

Cr Phoenix Ruka
Cr Paul Yovich

Scribe

D Garner (Democracy Adviser)

Administrative matters

- Meeting livestreamed
- Supplementary report
 - Item 7.12 Adoption of the 2023-24 Summary Annual Report

1. Karakia/Prayer

His Worship the Mayor opened with a prayer.

2. Declarations of Interest / Take Whaipānga

Item 7.5 Statements of Expectations for Council Controlled Organisations 2025
Item 7.7 Regional Deals - Steps to respond to the government's invitation
Item 9.2 WAT Rent Concession

3. Apologies / Kore Tae Mai

Cr's Phoenix Ruka and Paul Yovich.

Moved By Cr Deborah Harding

Seconded By Cr Patrick Holmes

That the apologies be sustained.

Carried

4. Public Forum / Huihuinga-a-tangata

There were no speakers at public forum.

5. Police Report

5.1 Police Report - December 2024

That Council note the report on Police activities.

Moved By Cr Simon Reid

Seconded By Cr Scott McKenzie

That Council note the report on Police activities.

Carried

6. Confirmation of Minutes of Previous Meeting of the Whangarei District Council / Whakatau Meneti

6.1 Minutes Whangarei District Council Meeting held 28 November 2024

Moved By Cr Carol Peters

Seconded By Cr Marie Olsen

That the minutes of the Whangarei District Council meeting held Thursday 28 November 2024, having been circulated, be taken as read and now confirmed and adopted as a true and correct record of proceedings of that meeting.

Carried

7. Decision Reports / Whakatau Rīpoata

7.1 Alcohol Control Bylaw - Final decision

Moved By Cr Gavin Benney

Seconded By Cr Scott McKenzie

That Council:

1. Determines that the draft amended Alcohol Control Bylaw provided in Attachment 1—
 - a. is the most appropriate form of the Bylaw; and
 - b. gives rise to some implications under the New Zealand Bill of Rights Act 1990, but is not inconsistent with it.
2. Amends the Alcohol Control Bylaw, as provided in Attachment 1, with effect from 19 December 2024;
3. Determines that in each of the Alcohol Ban Areas included in Attachment 2—
 - a. the area has experienced a high level of crime or disorder that can be shown to have been caused or made worse by alcohol consumed there;
 - b. the ban is appropriate and proportionate in the light of that crime or disorder; and
 - c. the ban can be justified as a reasonable limitation on people's rights and freedoms.
4. Determines that in each of the Alcohol Ban Areas included in Attachment 3, the level of alcohol induced crime or disorder experienced before the ban was in place is likely to return to the area if the ban does not continue;
5. Amends the register of Alcohol Control Areas and renames it Register of Alcohol Bans, as provided in Attachment 4, with effect from 19 December 2024;
6. Delegates to the Chief Executive all its responsibilities, duties and powers under the Alcohol Control Bylaw, except—
 - a. the power to set fees;
 - b. the power to make a decision for which a Council resolution is required;
 - c. the power to hear and decide on any appeal process;
7. Authorises the Chief Executive to make any minor edits or amendments to the Alcohol Control Bylaw and the Alcohol Ban Areas to correct any spelling or typographical errors and/or to reflect decisions made by Council at this meeting;
8. Commits to undertaking consultation with the following specific areas by 31 March 2025, for a subsequent Council decision:
 - Bland Bay
 - Whangaruru South

- Teal Bay
- Whananaki
- Tutukaka Coast

9. Notes that additional resourcing may be required to achieve the performance measure of the Strategy function for financial year 2024-25 under Council's Long Term Plan.

Carried

7.2 Council Funding for Storm Damage Repair Costs 2024-26

Moved By Cr Simon Reid

Seconded By Cr Nicholas Connop

That the Council:

1. Receives the report on the Storm Damage Repairs Costs for 2024-27,
2. Approves the provision of up to \$2,628,378 of unbudgeted spend for the Council share of Storm Damage Repair costs for 2024-27 as detailed in this agenda item.

Carried

7.3 Council Subsidised Roding Programme 2024-27

Moved By Cr Simon Reid

Seconded By Cr Carol Peters

That the Council:

1. Receives the report on the reduced subsidy funding from NZTA for the 2024-27 Roding Program.
2. Approves the revised Roding Budget for the subsidised Roding Program for 2024-25 as detailed in this agenda.
3. Notes that approval for budget allocations for the remaining two years of the LTP will be confirmed through the Annual Plan process.

Carried

7.4 Project Lifecycle Management - Approval of Delegations

Moved By Cr Carol Peters
Seconded By Cr Phil Halse

That the Council:

1. Delegates to General Manager roles the ability to approve project budget reallocations as follows:
 - a. To approve the allocation of a budget for a programme of work to a lower level Project Number.
 - b. To approve the reallocation of a project budget to a different project within the same LTP programme.
 - c. To approve the reallocation of a project or programme budget to a different project/programme within the same LTP Activity.
 - d. To approve bringing budgets forward across years 1, 2 and 3 of the Long Term Plan for a defined project or programme of work.
2. Council notes that the resulting delegations will be incorporated into Council's delegations register for General Manager roles.
3. Council notes that budget reallocation requests will be subject to a review process to ensure appropriateness and accuracy.
4. Council notes that budget transfers will be reported to the Finance Committee.

Carried

7.5 Statements of Expectations for Council Controlled Organisations 2025

Moved By Cr Simon Reid
Seconded By Cr Carol Peters

That the Council:

1. Approves the Statements of Expectation for 2025-2026.

Carried

Declaration of Interest:

Cr Ken Couper declared an interest as Council appointed representative to the Whangarei Art Trust Board.

7.6 Progression of the Northland Multi-Agency Coordination Centre (MACC)

Moved By His Worship the Mayor
Seconded By Cr Nicholas Connop

That the Council:

1. Receive the report 'Progression of the Northland Multi-Agency Emergency Coordination Centre (MACC)'.
2. Approve the Chief Executive to enter into a Heads of Agreement and associated costs with the Kaipara and Far North District Council's and the Northland Regional Council for the Northland Multi-Agency Coordination Centre (the Agreement), subject to the Chief Executive being satisfied that:
 - a. Council has complied with all statutory, regulatory (and policy) obligations that relate to the Agreement; and
 - b. The Agreement includes any conditions deemed to be reasonable and appropriate in the view of the Chief Executive having taken legal or other professional advice, if required.
3. Acknowledge the \$933,000 be transferred to the Northland Regional Council project budget as per the Agreement through a planned schedule of payments at key milestones.
4. Acknowledge that by entering into a Heads of Agreement and subsequent lease agreements, Council is committing to provide unbudgeted funding including potential further funding investment to complete the project, ongoing operational costs and future capital renewals. All future Council contributions will be treated as opex and would need to be incorporated into future budget and funding decisions.

Carried

7.7 Regional Deals - Steps to respond to the government's invitation

Moved By His Worship the Mayor
Seconded By Cr Phil Halse

That the Council:

1. Endorse the preparation of a Regional Deal proposal for submission to central government.
2. Agree to collaborate with the other three local authorities as a single "region" for the purpose of the Regional Deal.
3. Approve Northland Inc Limited as the lead organisation responsible for coordinating the development of the Regional Deal proposal, with support from all four councils.

4. Approve the Joint Regional Economic Development Committee as the governance entity overseeing the development of the proposal, subject to amending its terms of reference as outlined in Attachment 4 of this agenda item.
5. That council endorse the Chair of the Northland Mayoral Forum as the regional spokesperson of the Regional Deal initiative.
6. Approves an Expression of Interest being submitted on behalf of Northland Local Authorities (by 18 December 2024), following review by the Chief Executive.
7. That council note that similar recommendations are being presented to FNDC, KDC, and NRC at their December 2024 meetings to ensure regional alignment and collaboration.

Amendment

The amendment was taken in parts.

Moved By Cr Carol Peters

Seconded By Cr Patrick Holmes

That the Council:

1. Endorse the preparation of a Regional Deal proposal for submission to central government.
2. Agree to collaborate with the other three local authorities as a single “region” for the purpose of the Regional Deal.
3. Approve Northland Inc Limited as the lead organisation responsible for coordinating the development of the Regional Deal proposal, with support from all four councils.
4. Approve the Joint Regional Economic Development Committee as the governance entity overseeing the development of the proposal, subject to amending its terms of reference as outlined in Attachment 4 of this agenda item.
6. Approves an Expression of Interest being submitted on behalf of Northland Local Authorities (by 18 December 2024), following review by the Chief Executive.
7. That council note that similar recommendations are being presented to FNDC, KDC, and NRC at their December 2024 meetings to ensure regional alignment and collaboration.

Carried

That the Council:

5. That Council endorse the Chair of the Joint Regional Economic Development Committee as the regional spokesperson of the Regional Deal initiative.

On the motion being put Cr Phil Halse called for a division:

	For	Against	Abstain
His Worship the Mayor		X	
Cr Gavin Benney		X	
Cr Nicholas Connop		X	
Cr Ken Couper	X		
Cr Jayne Golightly	X		
Cr Phil Halse		X	
Cr Deborah Harding	X		
Cr Patrick Holmes	X		
Cr Scott McKenzie	X		
Cr Marie Olsen			X
Cr Carol Peters	X		
Cr Simon Reid		X	
Results	6	5	1

**The amendment was Carried (6 to 5)
and subsequently Carried
as the substantive Motion**

Declaration of Interest:

His Worship the Mayor, Cr Phil Halse and Cr Carol Peters declared interests as Council appointed representatives (Cr Carol Peters as stand-in) to the Joint Regional Economic Development Committee.

7.8 Local Water Done Well Update – Consultation and Northland CCO

Moved By His Worship the Mayor

Seconded By Cr Simon Reid

That the Whangarei District Council:

1. Notes the report;
2. Notes information regarding the Local Government (Water Services Preliminary Arrangements) Bill, and the key principles of Local Water Done Well;
3. Supports Council investigating, with other Northland councils, the option of a Northland Waters Council Controlled Organisation (CCO) to meet the requirements of Local Water Done Well;

4. Supports regional collaboration with this initiative through the Mayoral Forum, with regular reporting to Council;
5. Supports completion of the investigations and identification of the preferred options for consultation in time for consultation to occur in conjunction with the 2025/26 Annual Plan;
6. Supports the use of Department of Internal Affairs staff to assist with completing a high level analysis of a Northland 3 waters CCO;
7. Supports the use of consultants to provide a more detailed analysis suitable for consulting with the community.
8. Notes that significant engagement and collaboration will be necessary by all the participating Northland Councils (WDC, FNDC and KDC) for a Northland 3 waters CCO option to be fully explored.
9. Notes that the Whangarei District Council's current options, being modelled for consultation, are:
 - In-house business unit
 - Regional Northland Waters CCO.
10. Notes that if a Northland Waters CCO is not agreed or achievable, the second option for consultation will be a Whangarei Only CCO.

Amendment

Moved By Cr Scott McKenzie

Seconded By Cr Patrick Holmes

That the Council:

1. Notes the report;
2. Notes information regarding the Local Government (Water Services Preliminary Arrangements) Bill, and the key principles of Local Water Done Well;
3. That WDC seeks written confirmation that Auckland Council decline to collaborate with WDC, to explore an Auckland/Northland Regional CCO option for Local Waters Done Well, and have offered contracted services only to Northland Councils.

4. Supports Council investigating, with other Northland councils, the option of a Northland Waters Council Controlled Organisation (CCO) to meet the requirements of Local Water Done Well;
5. Supports regional collaboration with this initiative through the Mayoral Forum, with regular reporting to Council;
6. Supports completion of the investigations and identification of the preferred options for consultation in time for consultation to occur in conjunction with the 2025/26 Annual Plan;
7. Supports the use of Department of Internal Affairs staff to assist with completing a high level analysis of a Northland 3 waters CCO;
8. Supports the use of consultants to provide a more detailed analysis suitable for consulting with the community.
9. Notes that significant engagement and collaboration will be necessary by all the participating Northland Councils (WDC, FNDC and KDC) for a Northland 3 waters CCO option to be fully explored.
10. Notes that the Whangarei District Council's current options, being modelled for consultation, are:
 - In-house business unit
 - Regional Northland Waters CCO.
11. Notes that if a Northland Waters CCO is not agreed or achievable, the second option for consultation will be a Whangarei Only CCO.

**The amendment was Carried
and subsequently Carried
as the substantive Motion**

*A short break was taken from 11:07am to 11:13am.
Cr Carol Peters left at 11:12am during the break.*

7.9 Whangarei to Port Rail Political Advisory Group

Moved By Cr Phil Halse

Seconded By Cr Ken Couper

That the Council:

1. Approves the extension of the Whangarei to Port Rail Political Advisory Group to include an elected representative from Northland Regional Council.

Amendment

Moved By Cr Simon Reid

Seconded By Cr Marie Olsen

That the Council:

1. Approves the extension of the Whangarei to Port Rail Political Advisory Group to include the Chairperson (or their alternate) of the Northland Regional Council.

**The amendment was Carried
and subsequently Carried
as the substantive Motion**

7.10 Temporary Road Closure - Taste Whangarei March 2025

Moved By Cr Simon Reid

Seconded By Cr Deborah Harding

That the Council:

1. Approves the proposal to temporarily close the following roads to ordinary traffic for the Taste Whangarei – A Multicultural Food Fair event on the following date in accordance with the Transport (Vehicular Traffic Road Closure) Regulations 1965.

Thursday 20th March 2025

Cameron Street, from corner of John Street and Cameron Street to James Street.

James Street, from Cameron Street to Robert Street.

Period of Closure: 2pm to 10pm

2. Approves the proposal to temporarily close the side roads off the roads to be closed for up to 100 metres from the intersection for safety purposes.
3. Delegates to the Chair of the Infrastructure Committee and General Manager Infrastructure the power to give public notice of these proposed temporary closures, to consider any objections and to either approve, cancel or amend any or all of the temporary road closures if applicable.

Carried

7.11 Decision making over the Christmas recess period 2024 -2025

Moved By Cr Ken Couper

Seconded By Cr Nicholas Connop

That Council:

1. Delegates the power to make urgent decisions on behalf of Council or its Committees between the last scheduled meetings in December 2024 and the first meeting of Council or its Committees in 2025 (the 2024-25 Christmas recess period) to:
 - any two of either the Mayor or Deputy Mayor, and the Chairperson of either the Finance, Infrastructure, Strategy Planning and Development, Community Development, or Te Kārearea Strategic Partnership Standing Committees
2. In the event the Mayor and Deputy Mayor are both absent from Council at the same time, delegates the power to make urgent decisions on behalf of Council or its Committees over the 2024-25 Christmas recess period to:
 - Any two Chairpersons of either the Finance, Infrastructure, Strategy Planning and Development, Community Development, or Te Karearea Strategic Partnership Standing Committees.
3. Approve the increase of the Chief Executive's financial authority to \$10million (excluding GST), for the period between the last scheduled Council meeting in December 2024 and the first meeting of Council or other relevant Committees in 2025. Any contracts over the Chief Executive's usual delegated authority (\$3.5million GST excl), be in written consultation with one of the following : Chair of the Infrastructure Committee or the Mayor.
4. Notes that if it is considered necessary, an extraordinary meeting of Council will be called during the 2024-25 Christmas recess period.
5. Notes that if the urgent decision-making process is exercised, the instances will be reported to the first Council or relevant Committee meeting in 2025.
6. Designates Councillor Nicholas Connop the authority under section 25(5) of the Civil Defence Emergency Management Act 2002 to declare a state of local emergency in the event the Mayor is unavailable over the 2024-25 Christmas recess period.

Carried

Extra ordinary business

Subsequent to the agenda being circulated Item 7.12 Adoption of the 2023-24 Summary Annual Report was distributed separately but not within the timeframe specified in LGOIMA.

The report was not included in the agenda for the reason that the attachment 2023-24 Summary Annual Report was not finalised at the time of the agenda closure.

Council are asked to consider this matter at today's meeting to enable the adoption of the 2023-24 Summary Annual Report.

Moved By His Worship the Mayor

Seconded By Cr Nicholas Connop

That Council consider Item 7.12 Adoption of the 2023-24 Summary Annual Report at today's meeting.

Carried

7.12 Adoption of the 2023-24 Summary Annual Report

Moved By His Worship the Mayor

Seconded By Cr Patrick Holmes

That the Council:

1. Receives the independent Auditor's Report for the Summary Annual Report.
2. Adopts the Summary Annual Report for the year ended 30 June 2024.
3. Authorises the Chief Executive to make any minor editing amendments that are required.

Carried

8. Public Excluded Business / Rāhui Tangata

Moved By His Worship the Mayor

Seconded By Cr Patrick Holmes

That the public be excluded from the following parts of proceedings of this meeting. The general subject of each matter to be considered while the public is excluded, the reason for passing this resolution in relation to each matter, and the specific grounds under Section 48(1) of the Local Government Official Information and Meetings Act 1987 for the passing of this resolution are as follows:

General subject of each matter to be considered		Reason for passing this resolution in relation to each matter	Ground(s) under Section 48(1) for passing this resolution
1.1	Confidential Minutes Whangarei District Council 28 November 2024	Good reason to withhold information exists under Section 7 Local Government Official Information and Meetings Act 1987	Section 48(1)(a)
1.2	WAT Rent Concession		
1.3	Maungatapere Property Investigation		
1.4	Development opportunity SH14		
1.5	Waipu - Development Plan		

This resolution is made in reliance on Section 48(1)(a) of the Local Government Official Information and Meetings Act 1987 and the particular interest or interests protected by Section 6 or Section 7 of that Act which would be prejudiced by the holding of the whole or the relevant part of the proceedings of the meeting in public, are as follows:

Item	Grounds	Section
1.1	For reasons stated in the open minutes	
1.2	To enable Council to carry on without prejudice or disadvantage commercial activities. To enable Council to carry on without prejudice or disadvantage negotiations (including commercial and industrial negotiations).	Section 7(2)(h) Section 7(2)(i)
1.3	To enable Council to carry on without prejudice or disadvantage commercial activities. To enable Council to carry on without prejudice or disadvantage negotiations (including commercial and industrial negotiations).	Section 7(2)(h) Section 7(2)(i)
1.4	To protect information where the making available of the information would be likely unreasonably to prejudice the commercial position of the person who supplied or it the subject of the information.	Section 7(2)(b)(ii)

	To enable Council to carry on without prejudice or disadvantage negotiations (including commercial and industrial negotiations).	Section 7(2)(i)
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Carried

9. Closure of Meeting / Te katinga o te Hui

His Worship the Mayor concluded the meeting at 12.09pm with a prayer.

Confirmed this 27th day of February 2025

His Worship the Mayor Vince Cocurullo (Chairperson)